HEADNOTE

"1. Where the Court grants the applicant a choice between deposit and provision of a bank guarantee as to the type of security to be provided, and the applicant subsequently provides a bank guarantee in addition to the deposit, the resulting double security may be grounds and reason for a corresponding release decision.
2. This does not mean that such an exchange of security is entirely within the applicant's discretion, such that the applicant may exercise its choice regarding the provision of security as often as it wishes with the consequence that the originally provided security is always released upon provision of further security. In the context of the discretionary decision to be made under R. 352.2 RoP, the interests of the other party and the Court must also be taken into account alongside the interests of the applicant in such an exchange of security.
3. A legitimate interest of the applicant in exchanging the security may exist where the applicant initially opted for deposit, which it considered faster to realize, in the interest of swift enforcement of an ex parte order, but has subsequently obtained a bank guarantee and provided it as security."

COURT
Local Division in Düsseldorf

PROCEEDINGS
Application for provisional measures

PATENT
EP 3 466 498 B1

SEARCH DEVICE FOR AVALANCHE VICTIMS AND METHOD FOR OPERATING A SEARCH DEVICE FOR AVALANCHE VICTIMS

KEYWORDS
Arrangement of preliminary measures
Security deposit
Exchange of security
ex parte arrangement

Rule 352 Binding effect of decisions or orders subject to security

SUMMARY
The Local Division in Düsseldorf ruled on an application for provisional measures. The patent at issue relates to a search device for avalanche victims and method for operating such a device. According to the headnotes of the decision, a court may offer a choice between deposit and bank guarantee as security. Providing both types of security may justify releasing the original deposit. However, the applicant cannot freely exchange security types repeatedly at will. The interests of the opposing party and the court must be weighed alongside the applicant's preferences. Further, a legitimate interest in exchanging security may exist in certain circumstances. This applies where the applicant initially chose deposit for speed. The applicant may later obtain a bank guarantee and offer it instead.